

REFERRAL AGREEMENT

This Referral Agreement (“Agreement”) is entered on **DD-Month-2025**.

BETWEEN

M/s. TYN Ecosystem Private Limited, a company incorporated under the Companies Act, 2013, having its registered office at Block 3, Flat No. 2K, Radiance Ivy Terrace Apartments, OMR, Egattur, Rajiv Gandhi Salai, Navalur, Chinglepet, Tamil Nadu 603103 India (Herein after referred as “**Referrer**” or “**TYN**”) which expression shall mean and include its associated entities, sister concerns and permitted assigns;

AND

[Product Company Name], a company incorporated under The Companies Act, **[]**, having its registered office at **[]**, (Herein after referred as “**Solution provider**”), which expression shall, mean and include its associated entities, sister concerns and permitted assigns.

The Referrer and Solution provider shall be individually referred to as “**Party**” and collectively as “**Parties**.”

WHEREAS,

- A. The Referrer, is engaged in the business of providing innovation consulting services for enterprises and facilitating commercial introductions between enterprises and solution providers;
- B. The Solution Provider is engaged in the business of providing **[] (Products/Services)**.
- C. The Solution Provider desires to avail the professional referral and facilitation services of the Referrer for introducing potential enterprise clients (“Referred Clients”).
- D. The Parties wish to set out the terms and conditions upon which TYN shall provide sell through facilitation services under which the Referrer shall refer potential clients to the Solution Provider and the Solution Provider shall pay referral fees for successful commercial engagements arising from such referrals.

NOW, BOTH PARTIES AGREE AS FOLLOWS:

1. Purpose: The purpose of this Agreement is to define the terms and conditions under which the Referrer shall identify and introduce potential enterprise clients (“Leads” or “Referred Clients”) to the Solution Provider for the purchase or subscription of its Product/Services . TYN shall act as a Sell Through Agent between the Client and the Solution Provider, assisting in introductions, insights on commercial discussions, evaluation processes, and deal closure, while the Solution Provider remains the seller of record and invoices the Client directly

2. Term: This Agreement shall commence & remain in force until 31/12/2028 subject to periodical renewals with mutual written consent between the Parties in writing.

3. Referrer's Responsibilities

The Referrer agrees to:

- a) Featuring the Solution Provider on NiFo, the referrer's proprietary platform.
- b) Introducing the Solution Provider to potential enterprise clients.
- c) Facilitating connections with the appropriate stakeholders.
- d) Sharing insights on enterprise processes and best practices.
- e) Supporting technical discussions and evaluations as required.

4. Solution Provider's Responsibilities

The Solution provider agrees to:

- a) Follow up with the Referred Leads and, if applicable, provide necessary information or assistance for the customer's purchase of the Product or services.
- b) Own and drive all commercial discussions, negotiations, and final agreements with enterprise clients.
- c) Notify the Referrer of any successful sales that result from a referral.

5. Referral Fee:

The Solution Provider agrees to pay the Referrer a referral fee for successful client introductions that lead to commercial engagements, as outlined below:

a) **Straight Purchase Deals:**

- i. The Solution Provider agrees to pay a referral fee of **10% of the total revenue received (excluding government taxes)** from the referred client to TYN, or **₹10,00,000 (Rupees Ten Lakhs Only)**, whichever is lower, per deal.
- ii. The referral fee will be paid within 10 working days after the Solution Provider receives Purchase Order ("PO") from the Referred Client.

b) **Subscription-Based Deals:**

- i. The Solution Provider agrees to pay a referral fee of **10% of the invoiced amount to TYN (excluding government taxes)** for each monthly billing cycle for a period of **12 consecutive months** from the date of the first invoice of each deal raised to the Referred Client. The referral fee shall be paid within seven (7) working days from the date of each invoice raised to the Referred Client.

c) **Transaction-Based Deals:**

- i. The Solution Provider agrees to pay a referral fee of **10% of the total monthly invoice amount to TYN (excluding government taxes)**, payable at the end of each month, for a period of **12 consecutive months** from the date of the first invoice of each transaction that is raised by the Solution Provider to the Referred Client.
- ii. The referral fee shall be paid within seven (7) working days from the date of each invoice raised to the Referred Client. Any chargebacks, adjustments, or balance reconciliations shall be accounted for and settled after the 12 month period for each deal.

d) The Solution Provider agrees to pay the referral fee for any deal closures that occur within one year from the date the lead is generated.

e) The Solution Provider shall share copies of all invoices and payment receipts related to referred clients within 3 business days of issuance. The Referrer shall have the right to audit such records, upon reasonable notice, to verify accuracy of referral fee payments.

6. Joint Notification Clause: The solution provider agrees to share a copy of every invoice (with a date/timestamp) and every payment confirmation (proof of bank deposit) with TYN within 48 hours of sending/receiving. Failure to do so is a material breach of the agreement, triggering penalties and audit rights.

7. Visibility & Reporting Rights: The Solution Provider agrees to provide TYN with reasonable visibility into:

- a) Deal stage progress and status updates;
- b) Final commercial terms agreed with Client;
- c) Invoices and payment receipts relating to the Solution for calculation of Referral Fee ;
- d) Any contract amendments, renewal, add-on or expansion deals relating to the Referred Client within 12 months from deal closure, or until the Referral Fee is due

For the avoidance of doubt, the Parties acknowledge that the solution provider expressly requires that all invoices relating to a referred deal shall be issued using a three-party invoice template, and TYN shall have a contractual right to receive payment data and/or exercise control over the payment flow for the purpose of verifying Referral Fee entitlement and enforcing payment obligations.

8. Non-Circumvention:

- a) The Solution Provider hereby agrees and undertakes that it shall not, directly or indirectly, attempt to circumvent, avoid, bypass, or obviate the Referrer's role by contacting, engaging, or transacting with any Lead, Referred Client, or party introduced by the Referrer, whether for the same or a similar product or service, without routing such engagement through the Referrer.
- b) This obligation shall remain in force during the term of this Agreement and for a period of two (2) years following its termination or expiry.
- c) In the event of any such circumvention or breach, the Referrer shall be entitled to claim and recover full referral fees, loss of business opportunity, and consequential damages, in addition to any other remedies available under law.

9. Exclusivity

- a) The Solution Provider agrees that for any Lead and/or Referred Client introduced by TYN, TYN shall have exclusive rights to facilitate all discussions with such Lead and/or Referred Client for 12 months from the date of introduction.
 - i. During this period, the Solution Provider shall not directly or indirectly engage with the lead and/or Referred Client by themselves or using any other intermediary to approach or transact with the same Referred Client for similar or competing services.
 - ii. Any direct engagement without TYN's prior written consent constitutes a material breach, entitling TYN to the full referral fee for the engagement and damages for lost business and goodwill.

10. Limitation of liability: In no event shall the referrer or any of its directors, officers, employees, or agents be liable for any consequential, indirect, direct, exemplary, special punitive, or incidental damages, arising from or relating to this Agreement and any agreement entered between Solution Provider and any party introduced by the Referrer.

11. Termination: Either Party may terminate this Agreement by providing 30 days written notice to the other Party. In the event of termination, any referral fees owed for engagements resulting from introductions of Referred Client facilitated by TYN shall remain payable as per the terms of this Agreement.

12. Entire Agreement: This Agreement contains the entire agreement between the Parties, and supersedes any prior written or oral agreements between them concerning the subject matter contained herein. If any provision of this Agreement shall be held invalid or unenforceable by a court of competent jurisdiction, the remaining provisions hereof shall continue to be fully effective.

13. Notices: All notices, requests, or other communications under this Agreement shall be sent by the Parties to each other at the addresses specified in this Agreement, by registered post or courier.

14. Amendments: All amendments or modifications to this Agreement shall be made in writing and signed by all Parties.

15. Governing Law / Jurisdiction / Dispute Resolution: This Agreement shall be governed by Indian laws. In case of disputes, either Party shall approach the competent courts at Chennai, which shall have the sole and exclusive jurisdiction to determine the disputes.

IN WITNESS WHEREOF, the Parties hereto have executed this Agreement on the day and the year hereinabove first written.

For and on behalf of:

[Solution Provider Name]

Sign here ► _____

Name:

Designation:

Date:

For and on behalf of:

TYN Ecosystem Pvt. Ltd.

Sign here ► _____

Name: Ganapathy Gangadharan S

Designation: CEO

Date: